

Dr. Mohd. Israr v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 1 August 2011 · Writ - C No. 42825 of 2011 · **Writ disposed; application to be considered under Supply Code 2005.**

HEADNOTE

A tenant alleged that the landlord had refused electricity and that he had applied to the corporation on 9 May 2011. Without issuing notice to the landlord or deciding entitlement, the Court disposed of the writ on the corporation's statement that the application would be decided under the U.P. Electricity Supply Code, 2005 and according to circular priority, directing that, subject to fulfilment of Code conditions, the application may be considered and disposed of in accordance with law.

FACTUAL SUMMARY

The petitioner, a tenant of private respondent no. 4, filed a writ alleging that the landlord had refused to give him electricity supply. He had applied to the electricity respondents on 9 May 2011. Counsel for respondents nos. 1 to 3 appeared; no notice was issued to the landlord. The corporation's counsel stated that the application would be decided under the U.P. Electricity Supply Code, 2005, and considered according to priority fixed by circulars.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

consideration of application for supply

HOLDING

Subject to fulfilment of the conditions prescribed under the U.P. Electricity Supply Code, 2005, the petitioner's application for electricity supply may be considered and disposed of in accordance with law. The writ petition was disposed of finally; no notice was issued to the landlord. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A tenant alleged that the landlord had refused electricity and that he had applied to the corporation on 9 May 2011. Without issuing notice to the landlord or deciding entitlement, the Court disposed of the writ on the corporation's statement that the application would be decided under the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TENANT WAS ENTITLED TO A CONNECTION DESPITE THE LANDLORD'S REFUSAL

Merits of the 9 May 2011 application were left to the corporation under the Supply Code; circular priority was not applied by the Court. ¶ 1